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PART I

Acts, Ordinances, President's Orders and Regulations

GOVERNMENT OF PAKISTAN
LAW AND JUSTICE DIVISION

Islamabad, the 21st May, 2020

No. F. 2(1)/2020-Pub.—The following Ordinance Promulgated on 20th May, 2020 by the President is hereby published for general information:—

ORDINANCE No. VI OF 2020

AN

ORDINANCE

*to provide for the right of review and re-consideration in giving effect to the
Judgment of the International Court of Justice*

WHEREAS, it is expedient to provide for the right of review and re-consideration to foreign nationals, in relation to orders and judgments of Military Courts;

(259)

Price : Rs. 6.00

[5588(2020)/Ex. Gaz.]

AND WHEREAS, the Senate and the National Assembly are not in session and the President is satisfied that circumstances exist which render it necessary to take immediate action;

NOW, THEREFORE, in exercise of the powers conferred by clause (1) of Article 89 of the Constitution of the Islamic Republic of Pakistan, 1973, the President is pleased to make and promulgate the following Ordinance, namely:—

1. **Short title and commencement.**—(1) This Ordinance may be called the International Court of Justice (Review and Re-consideration) Ordinance, 2020.

(2) It shall extend to the whole of Pakistan.

(3) It shall come into force at once.

2. **High Court's Power to review and reconsider.**—(1) Where:

(a) the International Court of Justice in relation to a foreign national passes an order in respect of rights under Article 36 of the Vienna Convention of Consular Relations of 24 April 1963; or

(b) a foreign national is aggrieved in respect of the rights available under Article 36 of the Vienna Convention of Consular Relations of 24 April 1963;

such foreign national, either himself or through his authorized representative, or through a consular officer of a mission of his country, may file a petition before a High Court for review and re-consideration, in terms of section 3, with regard to an order of conviction or sentence of a Military Court operating under the Pakistan Army Act, 1952.

Explanation.— “High Court” means a High Court established under Article 175 of the Constitution of Pakistan, 1973, within the limits of whose territorial jurisdiction a foreign national is confined.

(2) The petition for review and re-consideration may be filed within 60 days of:—

(a) the promulgation of this Ordinance against the order of the Military Court specified in sub-section (1) existing prior to the promulgation of this Ordinance; or

(b) the order of the Military Court specified in the sub-section (1), if such order has been delivered after the promulgation of this Ordinance.

3. **Disposal of petitions for review and re-consideration.**—In deciding a petition filed under section 2, the Court shall examine whether any prejudice has been caused to the foreign national in respect of his right of defence, right to evidence and principles of fair trial, due to denial of consular access according to the Vienna Convention on Consular Relations of 24 April 1963.

4. **Removal of difficulties.**—If any difficulty arises in giving effect to any provision of this Ordinance, the President may make such order as may appear to him to be necessary for the purpose of removing such difficulty.

5. **Ordinance to have overriding effect.**—The provisions of this Ordinance shall have effect notwithstanding anything to the contrary contained in any other law for the time being in force including the Pakistan Army Act, 1952.

DR. ARIF ALVI,
President.

MUHAMMAD KHASHIH-UR-REHMAN,
Secretary.